

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/04/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV1205504

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: KEITH KARPINSKI vs. DEFENDANT: SMITTY'S BAR INC., ET AL	
---	--

NATURE OF PROCEEDINGS: MOTION – OTHER: ASSIGNMENT ORDER AND FOR
ORDER RESTRAINING JUDGMENT DEBTOR

RULING

Judgment Assignees Zebulon Karpinski and Maya Karpinski's (collectively "Judgment Assignees") Motion for an Order assigning Judgment Debtor Kyle Philip Algeo's ("Judgment Debtor") interest in real estate commissions is **GRANTED in part**.

Judgment Assignees' Motion for an order restraining the Judgment Debtor and any servant, agent, employee or attorney for the Judgment Debtor and any person(s) in active concert and participating with the Judgment Debtor from encumbering, assigning, disposing or spending the earned real estate commissions and all rights to payment thereunder is **GRANTED in part**.

Legal Standard

Assignment orders may reach certain types of property that cannot be reached by a writ of execution or an earnings withholding order, such as wages due from the federal government not subject to an earnings withholding order, rents, commissions, royalties, patent or copyright payments, and an insurance policy loan value. (Code Civ. Proc., § 708.510, subds. (a)(1)-(6).) Other periodic payments, such as pension benefits and earnings and other forms of deferred compensation, may also be reached by an assignment order, within prescribed limits. (Code Civ. Proc., § 708.510, subd. (e).

In determining whether to order an assignment or the amount of the assignment, the court may consider:

- (1) the reasonable requirements of the judgment debtor and any dependents;

- (2) other payments the debtor is obligated to make, including payments or deductions under other judgments and wage assignments, including earnings assignments for support;
- (3) the amount of the balance outstanding on the judgment; and
- (4) the amount to be received in satisfaction of the right to payment sought to be assigned.

(Code Civ. Proc., § 708.510, subds. (c)(1)-(4).)

Code of Civil Procedure section 708.520, subd. (a) permits the judgment creditor to apply for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned when an application is made for an assignment order. The restraining order may be issued upon a showing of a need for the order. (Code Civ. Proc., § 708.520, subd. (b).) In its discretion, the Court may order the judgment creditor to provide an undertaking. (*Ibid.*)

The issuance of a restraining order under section 708.520 is permissible only if an assignment order is being issued or has issued. (*Landstar Global Logistics, Inc. v. Robinson & Robinson, Inc.* (2013) 216 Cal.App.4th 378, 390.)

Discussion

The motion is made on the grounds that the Judgment Assignees have a judgment against the Judgment Debtor, the balance due, including accrued interest to the date of this notice, is \$3,676,173.16, that the Judgment Debtor has an assignable right to the real estate commissions described herein, and that there is a need to restrain the Judgment Debtor.

Judgment was entered in this action on behalf of Judgment Creditor Keith Karpinski (“Judgment Creditor”) on October 17, 2014 against Judgment Debtor in the amount of \$1,430,968.84. (LaLanne Decl., ¶ 3.) The Judgment Creditor died on February 25, 2022. (*Id.*, at ¶ 4.) The judgment was assigned to Judgment Assignees on September 6, 2023 in Marin Superior Court Case In Re: Estate of Keith Woods Karpinski (PRO2201989). (*Ibid.*) The judgment was last renewed on December 3, 2024. (*Id.*, at ¶ 5.) The amount of the renewed judgment as of that date was \$3,227,640.63. (*Ibid.*) Interest has accrued on the renewed judgment, and post-judgment costs have been incurred. (*Id.*, at ¶ 6.) No payments have been received from Judgment Debtor or anyone to be applied this judgment. (*Id.*, at ¶ 7.)

There is now due and owing the sum of \$3,676,173.16 plus interest accruing from the date of entry of judgment and post-judgment costs. (*Ibid.*) The Judgment Debtor has real estate commissions payable to him by his employing broker, San Francisco Real Estate Holdings Inc. dba Engel & Volkers, as a result of sales and/or leasing activities performed by Judgment Debtor. (*Id.*, at ¶ 9.) Moving parties argue there is a need to restrain the Judgment Debtor from encumbering, assigning, disposing or spending the commissions as doing so will interfere with Judgment Assignees’ right to secure payment of the judgment. (*Id.*, at ¶ 11.)

Judgment Debtor opposes the Motion and seeks Exemption on the grounds that his income is driven solely from commissions, he supports his wife and minor child, and his commissions are

necessary to support them. He seeks to have the Motion denied in its entirety, or alternatively, to have the assignment limited to a reasonable percentage of his net commissions.

Per Judgment Debtor's declaration, his monthly work related expenses (excluding broker splits and tax withholdings) are averaged to \$2,586.21 per month. (Algeo Decl., ¶ 6.) He estimates his monthly average take home pay minus these expenses and tax withholdings of 30% is \$14,373.64. (Claim of Exemption, ¶2(e).) That amount includes his spouse's income. (*Id.*) Judgment Debtor estimates his monthly expenses as \$17,406.15, although this includes \$500 a month to save for a planned relocation to a larger rental. (*Id.*, ¶4(m), (n).)

After reviewing the papers in support of the Motion and those in opposition thereto and evaluating the factors discussed in Code of Civil Procedure section 708.510, subdivisions (c)(1)-(4), the Court concludes that it is fair and reasonable to GRANT the Motion in part. **Judgment Assignees are assigned 10% of Judgment Debtor's interest in all gross real estate commissions currently held and those earned in the future, until the debt is paid in full.** Judgment Debtor and any person(s) in active concert and participating with the Judgment Debtor are restrained from encumbering, assigning, disposing or spending the commissions to the extent they have been assigned.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/04/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV2301453

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: CAROLYN BORDES, ET AL	
vs.	
DEFENDANT: DAMIR STOSIC, ET AL	

NATURE OF PROCEEDINGS: MOTION – OTHER: REOPEN EVIDENCE

RULING

The Motion to Reopen Evidence by plaintiffs Stephen and Carolyn Bordes (collectively “Plaintiffs”) seeking leave to admit into evidence: 1) certified records of the Marin County Property Tax Division showing payment of property taxes on the property located at 503 Sausalito Boulevard, Sausalito, California (the “Property”), authenticated through the Declaration of Long Truong, custodian of records; and 2) Trial Exhibit 109, is **GRANTED**.

Background

This matter came before the Court for trial on May 4, 6, and 7, 2026. At trial, plaintiff Stephen Bordes testified that Plaintiffs had timely paid all property taxes each year since 2011, and that testimony was not objected to or contradicted. Plaintiffs did not, however, introduce certified county tax records.

After reviewing the closing brief of defendants Pauli-Larsen Stosic and Damir Stosic (collectively “Defendants”), who argued that payment of taxes for adverse possession must be established by certified records of the county tax collector under Civil Code section 325(b), Plaintiffs’ counsel concluded that the oral testimony may be insufficient. Accordingly, pursuant to Code of Civil Procedure sections 128(a)(3) and 473, and Evidence Code section 320, Plaintiffs moved to reopen the evidence, or to reopen their case in chief to admit certified tax records authenticated through the declaration of Long Truong, custodian of records for the Marin County Property Tax Division, and Trial Exhibit 109, which had been marked for identification but not admitted.

Legal Standard